

COMMUNITY PLAYLINK

(Registered Charity Number 1184505)



GDPR: POLICY & PROCEDURES

February 2025

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COMMUNITY PLAYLINK DATA PROTECTION POLICY

1. Introduction:

COMMUNITY PLAYLINK needs to collect and use certain types of information about the Individuals or Service Users who come into contact with **COMMUNITY PLAYLINK** in order to carry on our work. This personal information must be collected and dealt with appropriately whether it is collected on paper, stored in a computer database, or recorded on other material, and there are safeguards to ensure this under the Data Protection Act 2018.

2. Data Controller:

COMMUNITY PLAYLINK is the Data Controller under the Act, which means that it determines what purposes personal information held will be used for. It is also responsible for notifying the Information Commissioner of the data it holds or is likely to hold and the general purposes that this data will be used for.

3. Disclosure:

COMMUNITY PLAYLINK may share data with other agencies such as the local authority, funding bodies, and other voluntary agencies. The Individual/Service User will be made aware in most circumstances how and with whom their information will be shared. There are circumstances where the law allows **COMMUNITY PLAYLINK** to disclose data (including sensitive data) without the data subject's consent. These are:

- a) Carrying out a legal duty or as authorised by the Secretary of State.
- b) Protecting vital interests of an Individual/Service User or other person.
- c) The Individual/Service User has already made the information public.
- d) Conducting any legal proceedings, obtaining legal advice, or defending any legal rights.
- e) Monitoring for equal opportunities purposes – i.e., race, disability, or religion.
- f) Providing a confidential service where the Individual/Service User's consent cannot be obtained or where it is reasonable to proceed without consent: e.g., where we would wish to avoid forcing stressed or ill Individuals/Service Users to provide consent signatures.

COMMUNITY PLAYLINK regards the lawful and correct treatment of personal information as very important to successful working and to maintaining the confidence of those with whom we deal. **COMMUNITY PLAYLINK** intends to ensure that personal information is treated lawfully and correctly.

To this end, **COMMUNITY PLAYLINK** will adhere to the Principles of Data Protection, as detailed in the Data Protection Act 2018 and UK GDPR.

4. Overview of the Data Protection Act 2018 and UK GDPR:

The Data Protection Act 2018 ("the Act") updates and modernises data protection laws in the UK, aligning them with UK GDPR following Brexit. It sets new standards for protecting personal data, giving people more control over their data, and providing a framework for data protection compliance.

The four main areas covered by the Act include:

- General data processing.
- Law enforcement data processing.
- Data processing by intelligence services.
- Regulatory oversight and enforcement.

Data protection is essential to safeguard "personal data," which refers to any information relating to a living individual who can be directly or indirectly identified from that data. The Data Protection Act 1998 previously regulated personal data but has been replaced by the Data Protection Act 2018 and UK GDPR.

The UK's data protection laws must align with international data protection standards to ensure consistency and compliance in a global digital environment. The UK adheres to Convention 108+, an international treaty on data protection.

5. Principles of Data Protection:

The Data Protection Act 2018 and UK GDPR require that personal information:

- a) Shall be processed fairly and lawfully and, in particular, shall not be processed unless specific conditions are met.
- b) Shall be obtained only for one or more of the purposes specified in the Act and shall not be processed in any manner incompatible with that purpose or those purposes.
- c) Shall be adequate, relevant, and not excessive in relation to those purpose(s).
- d) Shall be accurate and, where necessary, kept up to date.
- e) Shall not be kept for longer than is necessary.
- f) Shall be processed in accordance with the rights of data subjects under the Act, including:
 - The right to be informed
 - The right of access
 - The right to rectification
 - The right to erasure ("right to be forgotten")
 - The right to restrict processing
 - The right to data portability
 - The right to object
 - Rights in relation to automated decision-making and profiling
- g) Shall be kept secure by the Data Controller who takes appropriate technical and other measures to prevent unauthorised or unlawful processing or accidental loss or destruction of, or damage to, personal information.
- h) Shall not be transferred to a country or territory outside the UK unless that country or territory ensures an adequate level of protection for the rights and freedoms of Individuals/Service Users in relation to the processing of personal information, in accordance with UK GDPR and the Data Protection Act 2018.

6. Data Breach Policy:

COMMUNITY PLAYLINK takes data security seriously and has procedures in place to identify, report, and manage data breaches in accordance with UK GDPR and the Data Protection Act 2018.

Reporting a Data Breach:

If a data breach is suspected or identified, the following steps must be taken:

- Report Internally – Any staff member or volunteer who becomes aware of a data breach must immediately notify the Data Protection Officer (DPO), Elaine Buckland.
- Investigate the Breach – The DPO will assess:
 - The nature of the breach.
 - The type and sensitivity of the affected data.
 - The potential harm to individuals.
- Contain and Mitigate – Steps will be taken to prevent further data loss or damage.

- **Assess the Risk** – If the breach is likely to result in a risk to individuals' rights and freedoms, it must be reported to the Information Commissioner's Office (ICO) within 72 hours of becoming aware of it. If notification is delayed, justification must be provided.
- **Notify Affected Individuals** – If the breach is likely to result in a high risk to the rights and freedoms of those affected, they will be informed without undue delay.
- **Document the Breach** – All breaches, whether reportable to the ICO or not, will be recorded in the Data Breach Register, including details of actions taken.

7. Data Access and Accuracy:

All Individuals/Service Users have the right to access the information **COMMUNITY PLAYLINK** holds about them. **COMMUNITY PLAYLINK** will:

- Ensure individuals can exercise their rights.
- Keep information up to date.
- Regularly review data management procedures.

8. GDPR Glossary:

- **Data Controller:** The entity that determines how and why personal data is processed.
- **Data Processor:** A third party that processes data on behalf of the Data Controller.
- **Data Subject:** An individual whose personal data is being processed.
- **Personal Data:** Any information related to an identified or identifiable individual.
- **Sensitive Data:** Special categories of data, such as health, racial, or biometric information.
- **UK GDPR:** The UK version of the GDPR following Brexit.
- **ICO (Information Commissioner's Office):** The UK's data protection regulator.
- **DPIA (Data Protection Impact Assessment):** A process to identify and mitigate risks in data processing activities.
- **SAR (Subject Access Request):** A request by an individual to access the personal data a company holds on them.

COMMUNITY PLAYLINK Data Protection Officer: **ELAINE BUCKLAND**

This revised policy was adopted by CPL Trustee Board:

Signed: **Richard Maunder** Date: 2nd February 2025
(Richard Maunder - Chair of the Trustee Board)

Next Policy Review Date: February 2027

For more information, visit the ICO website: <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/>